

DEPARTMENT OF THE TREASURY
SF 1014 - JUSTIFICATION FOR AN EXCEPTION
TO FAIR OPPORTUNITY

1. Identification of the requiring activity and the contracting activity:

The requiring activity is Information Technology Services, Office of Management, Office of the Comptroller of the Currency and the contracting activity is Acquisition Management, Office of Management, Office of Comptroller of the Currency.

2.a Nature and/or description of the action being approved:

The purpose of this Justification for an Exception to Fair Opportunity is to obtain approval to award a firm-fixed-price task order with LUMEN TECHNOLOGIES GOVERNMENT SOLUTIONS, INC. for continued Managed Trusted Internet Protocol Services (MTIPS) and Wide Area Network (WAN) services. The need date for these services is June 15, 2025. The resulting order will have a 12-month base period and four 12-month option periods. FAR 52.217-8 "Option to Extend Services" will be incorporated should the government require continued performance.

2.b Name of the vendor. LUMEN TECHNOLOGIES GOVERNMENT SOLUTIONS, INC.
Unique Entity ID - LL22S1ELLY93

2.c Requisition No.: 2500480000

2.d Bridge contract: ☐ Yes ☒ No

2.e Brand name: ☐ Yes ☒ No

3.a A description of the supplies or services required to meet the agency's needs:

– These services connect 82 OCC locations (office, bank, remote, and data centers, allowing agency employees to share data, access resources, and communicate securely over long distances using their computer systems

Specifically, the OCC requires a WAN consisting of a Multiprotocol Label Switching (MPLS) backbone with a fully meshed Dynamic Multipoint Virtual Private Network (DMVPN) overlay that connects the field office locations, Headquarters location, and data centers together with circuits of varying types and bandwidths. The OCC also requires support for three (3) MTIPS connections. MTIPS circuits provide the agency with secure Internet connections.

The scope of this effort includes providing WAN/MTIPS connectivity and security solutions for all OCC locations, along with the following key services:

- Access Arrangements (AAs)
 - Access Arrangements (AAs) shall provide the originating and/or terminating access services necessary to connect the Service Delivery Point (SDP) to the contractor's point of presence (POP) required to deliver a Telecommunications Service.
- Ethernet Transport Service (ETS)
 - ETS allows agencies to interconnect their local area networks (LAN), 10 Megabit per Second (Mbps), 100 Mbps, 1 Gigabit per Second (Gbps), and 10/40/100 Gbps transparently over the Metro Area Networks (MAN) and the Wide Area Networks (WAN) regardless of the geographical location of their sites.
- Internet Protocol Service (IPS)
 - The Enterprise Infrastructure Solutions EIS Internet Protocol Service (IPS) enables government personnel to access the Internet, government intranets, and extranets. IPS uses the TCP/IP protocol suite to interconnect Government Furnished Equipment (GFE) and Service-Related Equipment (SRE) with other government and public Internet Service Provider (ISP) networks. IPS connects a wide range of

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equipment (such as notebook Personal Computers (PCs), Personal Digital Assistants (PDAs), etc.) via appropriate combinations of EIS services to the Internet. IPS interfaces include Cable, Ethernet, IP over Synchronous Optical Network (SONET), Private Line Service, Fiber to the Premises (FTTP), and Wireless.

- Virtual Private Network Service (VPNS)
 - The EIS Virtual Private Network Service (VPNS) provides secure, reliable transport of agency applications across the provider's high-speed, unified, multi-service, IP-enabled backbone infrastructure. VPNS allows an agency to optimize its applications to enable the network to accurately and consistently allow for traffic prioritization and cost efficiencies to support the following VPNS traffic types: email, voice, video, and transaction etc.
- Managed Network Service (MNS)
 - The Managed Network Service (MNS) enables an agency to outsource a portion or all of its network planning, design, implementation, maintenance, operations and customer service as a strategic move to improve IT (Information Technology) services and lower costs. MNS covers two main activities: (1) Network Design and Engineering Services, and (2) Network Implementation and Maintenance Services.
- Managed Trusted Internet Protocol Service (MTIPS)
 - The EIS Managed Trusted Internet Protocol Service (MTIPS) allows agencies to connect logically and physically to external connections or in a way that aligns with the security compliance requirements of the agency and OMB's Trusted Internet Connection (TIC) Initiative (M-19-26), which provides the basis for TIC 3.0 policy. MTIPS complements CISA's TIC 3.0 Traditional TIC Use Case guidance.
- Service-Related Labor
 - The EIS Contract provides Service-Related Labor (SRL) in support of EIS services for standard operational or project specific resources. Agencies can use SRL resources at the capacity needed for a variety of IT and telecommunications areas as described in Section 4 *Ordering Guidance* of this document, *Table 1 SRL Labor Categories*. Service-Related Equipment (SRE)
 - The EIS Contract includes SRE to allow the EIS vendors to provide the equipment that goes along with the EIS services to help form complete solutions for Agencies. Equipment provided as SRE on the EIS Contract has several enhancements including the vendor catalog and flexible payment arrangements. Each EIS vendor maintains its own online catalog. Agency personnel must contact each vendor separately to request and obtain access to the online catalog.

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3.b Includes IT: ☒ Yes ☐ No 517110 / D399

3.c IGCE/Estimated dollar value:

[REDACTED]

4.a Identification of the exception to fair opportunity being used:

☐ FAR 16.505(b)(2)(i)(A) – The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

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☐ FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

☒ FAR 16.505(b)(2)(i)(C) – The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

☐ FAR 16.505(b)(2)(i)(D) – It is necessary to place an order to satisfy a minimum guarantee.

☐ FAR 16.505(b)(2)(i)(E) – For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source.

☐ FAR 16.505(a)(4) – The requirement is for an item peculiar to one manufacturer. (i.e., Brand Name specifications)

4.b Supporting rationale:

The current task order was competitively awarded via GSA EIS IDIQ and has an expiration date of 6/14/2025. ITS requires the continuation of WAN and MTIPS services with Lumen to ensure successful completion of current and new program operations, and most importantly, to avoid significant negative economic and efficiency impacts to OCC's in-progress priority infrastructure projects.

(1) Economic Impacts. The OCC cannot simply award a new contract to a vendor other than Lumen without significant advanced planning. Transitioning to another vendor for the 109 network circuits will likely span three years, due to the scheduling and logistics involved. Each site's network circuit transition must be carefully scheduled to ensure minimal disruption to OCC operations. This requires that each network circuit order be requested and scheduled by OCC engineers. After an order is placed, it typically takes the vendor approximately 90 days to design and deploy each network circuit. In some cases, due to logistical considerations (such as the need to sublease infrastructure from a local service provider in specific geographical areas), circuit orders may take up to 120 days to process. Additionally, after each network circuit is installed by the vendor, an OCC engineer must travel to the site to perform the activation and ensure proper functionality. The OCC estimates [REDACTED] in OCC employee labor costs and OCC employee travel if a switch to a different contractor were to occur instead of a logical follow-on to LUMEN TECHNOLOGIES GOVERNMENT SOLUTIONS, INC. (see estimates in two paragraphs below).

a. To support the transition, OCC would need to assign 2 NBV1 and 4 NBV employees with engineering skillsets to support transition activities with the new vendor.

b. Switching to a new vendor would also drive increased travel costs to MTIPS circuit and WAN circuit sites (84 field sites). Based on historical travel requests and voucher history associated with a switch from one contractor to another (GSA Networx to Qwest (Lumen) Government Services on GSA EIS) for OCC employees this has cost OCC [REDACTED] per year during the current contract.

Internal Employee Cost to OCC (example only)

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Task	Personnel Needed	Estimated hours	Average Hourly Rate (estimate)	Total Estimate
WAN/MTIPS Circuit Transition Project	NBV – Telecoms Engineer I			
	NBV – Telecom Engineer I			
	NBV – VOIP Engineer II			
	NBV - Telecoms Engineer II			
	Senior Telecoms Engineer			
	NB6 – Supervisory IT Specialist			
Total				

2) Efficiency impacts. Further, the transition of the EIS-WAN/MTIPS infrastructure to a new vendor necessitates close technical collaboration with the OCC's Internal Telecommunications and Network Operations team. This internal team, which consists of six engineers as outlined in the labor categories and cost table, will play a key role in managing the transition. The specific responsibilities of the internal OCC transition team for the EIS-WAN/MTIPS infrastructure, which involves 109 network circuits across 80 field/remote sites and two data centers, include the following:

- **Assessing Site Readiness:** Evaluating the current network infrastructure at each site to determine readiness for transition.
- **Scheduling Network Downtime:** Coordinating and scheduling downtime for each site to minimize any impact on agency operations.
- **Coordinating Logistics and Communication:** Managing logistics and maintaining communication throughout the transition process.
- **Installing New Site Equipment:** Installing OCC site equipment that aligns with the unique specifications of the new vendor's infrastructure.
- **Configuring Site Equipment:** Configuring OCC equipment and devices to meet the vendor's technical specifications.
- **Collaborating with Vendor Engineers:** Working alongside vendor engineers to configure interfaces that connect OCC equipment with the new vendor infrastructure.

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- **Testing and Validation:** Testing and validating new network connections at each site to ensure proper functionality.
- **Disconnection of Legacy Vendor Infrastructure:** Disconnecting any previous vendor connectivity extensions.
- **Connecting New Infrastructure:** Installing extensions that connect the new vendor equipment to the OCC network.

EOL Tech Refresh project. This is a high priority project to replace network equipment at 93 field offices. Some of the equipment is past end-of-life (EOL). If this project is not resourced, due to diversion of the required personnel to a MTIPS and WAN contract transition to a new contractor, security vulnerabilities in the network will increase in risk and network will not be compliant with security requirements.

Asset Management project. This project tracks Information Technology assets in ServiceNow to ensure compliance with directives associated with software asset management (e.g., E.O. 13103, E.O. 14028, OMB Memo M-22-18). If this project is not resourced, due to diversion of the required personnel to a MTIPS and WAN contract transition to a new contractor, OCC will not have an accurate picture of its assets, negatively impacting purchasing decisions and inventory management and may be unable to comply with directives associated with software asset management.

Office Moves project. The Office Moves project is a high priority project that provides networks and telecommunication infrastructure support for the OCC field office moves initiative and the implementation of the OCC Article 15, Workspace Allocation. If this project is not resourced, due to diversion of the required personnel to MTIPS and WAN contract transition to a new contractor, required office location moves and Workplace Allocation tasks would be delayed due to lack of OCC personnel required to provide the much-needed networks and telecommunication infrastructure support.

WAN/MTIPS Circuit Upgrades project. The WAN/MTIPS Circuit Upgrades project increases the bandwidth of network connectivity to all OCC field office sites as part of the improvement efforts on the agency network infrastructure and the resolution of ongoing network congestion issues. If this project is not resourced, current critical issues with network congestion and slow network responses will not be remediated.

NextGen SD-WAN project. This project addresses network infrastructure efficiency across the OCC field office sites. There are significant network traffic latency issues (especially on the West Coast field offices) to be addressed by this project. If the project is not resourced, due to diversion of the required personnel to MTIPS and WAN contract transition to a new contractor, the network latency issues will not be resolved, and network performance across OCC sites will continue to experience latency issues.

5. A determination that the anticipated cost to the Government will be fair and reasonable:

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The GSA EIS IDIQ establishes maximum prices that have already been determined to be fair and reasonable by a GSA contracting officer. The OCC CO has no reason to suspect the pricing will not be fair and reasonable based on this. Additionally, the OCC will pursue discount beyond the established IDIQ pricing.

6.a Any other facts supporting this justification:

No additional Information.

6.b Attachments: ☐ Yes ☒ No

7. A statement of the actions, if any, the Requiring Activity and Contracting Activity may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies and services is made:

The OCC CO and requiring activity intend for this five-year follow-on task order to be the only logical follow-on for this requirement awarded to this contractor. Also, the CO and requiring activity do not anticipate any reason the next iteration of this requirement would be competed using an exception to fair opportunity, or other limitation of competition if the GSA EIS IDIQ is not used next time. This requirement will be competed without competition limits on the next iteration of the requirement.

8. Certifications and Approvals:

8.a Program Office Certification (Requiring Activity). I hereby certify that any supporting information and data provided (e.g., the Government's minimum needs or requirements, or other rationale for the limited sources) and which form the basis for this justification for an exception to fair opportunity, are accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]

Signature: [REDACTED]

8.b Contracting Officer Certification and Approval. I certify this justification for an exception to fair opportunity is accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the authorized contracting officer for this acquisition, I hereby approve the processing of this requirement based on the authority specified in 4.a above.

Name: [REDACTED]

Signature: [REDACTED]

9. Additional Reviews and Approvals (As applicable):

9.a Bureau Chief Information Officer or Authorized Designee (for IT requirements that are over \$5 million, but not exceeding \$75 million) (Contracting Activity). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief, and representative of the Government's need. Therefore, I hereby consent to the approval of this justification. (Note: The Bureau CIO may delegate their authority for proposed contracts over \$5 million, but not exceeding \$15 million to the Associate Bureau CIO(s).)

Name: [REDACTED]

Signature: [REDACTED]

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9.b Advocate for Competition (if over \$750,000, but not exceeding \$15 million) (Contracting Activity). I have reviewed this justification for an exception to fair opportunity and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the ordering activity's Advocate for competition, I hereby approve this justification based on the authority specified in 4.a above.

Name: [REDACTED]

Signature: [REDACTED]

9.c Head of the Procuring Activity or Authorized Designee (if over \$15 million, but not exceeding \$75 million) (Contracting Activity). I have reviewed this justification for an exception to fair opportunity and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as the head of the procuring activity or authorized designee, I hereby approve this justification based on the authority specified in 4.a above.

Name: [REDACTED]

Signature: [REDACTED]

9.d Treasury Chief Information Officer (for IT requirements that are over \$75 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief, and representative of the Government's need. Therefore, I hereby consent to the approval of this justification.

Name: N/A

Signature:

9.e Senior Procurement Executive (if over \$75 million) (Contracting Activity). I have reviewed this justification for an exception to fair opportunity and find it to be accurate and complete to the best of my knowledge and belief. Therefore, as the senior procurement executive, I hereby approve this justification based on the authority specified in 4.a above.

Name: N/A

Signature: